

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

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DAMIR MURATOVIC

CASE No.: 08-cv-2814

Plaintiff(s),

-against-

AMENDED COMPLAINT

PLAINTIFF(S) DEMAND
TRIAL BY JURY

THE CITY OF NEW YORK,
SGT ERIC DOWNS (SH. # 22035),
SGT MICHAEL LORIA (SH# 03912),
P.O. EDWARD FRENCH (SH# 30482),
P.O. BRENNEN LEAVY (SH# 01630),
P.O. HILLS,
P.O. LEEHE.

Defendant(s).

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Plaintiff DAMIR MURATOVIC, by his attorney, PAUL A. HALE, complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff is also asserting supplemental state law tort claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §1983 and 42 U.S.C. §1988, and the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under U.S.C. § 1391 (b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

6. Plaintiff, DAMIR MURATOVIC, born 8/26/1988, is a White American male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

7. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

9. That at all times hereinafter mentioned, the individually named defendant P.O. HILLS was a duly sworn police officer of said department and was acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned, the individually named defendant P.O. DOWNS was a duly sworn police officer of said department and was acting under the supervision of said department and according to their official duties.

11. That at all times hereinafter mentioned, the individually named defendant P.O.

LEEHE was a duly sworn police officer of said department and was acting under the supervision of said department and according to their official duties.

12. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

FACTS

(First Incident)

13. On or about 10/15/2007 at 11:50 PM plaintiff was lawfully in a car in front of 308 26th Ave (Between 3rd and 4th Street), County of Queens.

14. At the aforementioned time and place, Plaintiff was placed under arrest by three New York City police officers: Officer Hills, Officer Downs, and a Sergeant whose name is unknown.

15. Plaintiff was handcuffed and placed in custody.

16. Plaintiff was then unreasonably beaten by police, specifically, by having his head thrust onto the hood of the police cruiser hard enough to dent the hood paneling and punched in his sides and back.

17. Plaintiff was then transported to the 114th Precinct.

18. Plaintiff was then transferred to Queens central booking.

19. While in central booking Plaintiff was assaulted by another inmate. The other inmate punched plaintiff in the stomach and then threatened to kill him if he told anyone.

20. Plaintiff was released on Tuesday the 16th without charge.

21. Following the arrest, Plaintiff's mother filed a CCRB complaint against the arresting officers.

22. Plaintiff filed a notice of claim with the New York City Comptroller's office on November 29, 2007.

23. A 50h hearing was conducted on January 8, 2008.

(Second Incident)

24. On or about 11/28/2007 at 12:30 PM Plaintiff was lawfully walking in front of 54-15 Northern Blvd. Woodside, NY 11377.

25. Plaintiff was arrested without a warrant or probable cause by police officer Leehe.

26. Plaintiff was taken into custody and transported to the 114th Precinct.

27. Plaintiff was then released without charge the next day after approximately 15 hours in jail.

28. During the entire period Plaintiff was not given any food.

29. Plaintiff filed a notice of claim with the New York City Comptroller's office on February 5th, 2008.

30. A 50h hearing was conducted on March 18th, 2008.

(Third Incident)

31. On or about 12:25 AM on 2/6/2008 plaintiff was lawfully at the intersection of 31st Avenue and 34th Street in Astoria, NY.

32. At the time and place an unmarked police car pulled in front of plaintiff and blocked his path.

33. Three New York City Police officers exited the car and placed Plaintiff under

arrest without warrant or explanation.

34. Plaintiff was taken by the police to the 114th Precinct.

35. While being booked, officer Downs, who Plaintiff recognized from an earlier arrest and CCRB complaint, told Plaintiff, "We're going to keep arresting you until you drop the lawsuit."

36. Plaintiff was then taken to the Kew Gardens central booking complex and held until 9 AM the next morning.

37. Plaintiff was then released without saying anything to the Judge or understanding any of the proceedings.

38. Plaintiff never had his seized belongings returned to him, including his New York State Identification card.

39. Plaintiff has been continuously harassed and intimidated before and after this incident by the arresting officers and their colleagues.

40. Plaintiff filed a notice of claim with the New York City Comptroller's office on March 7th, 2008.

41. A 50h hearing was conducted on May 1st, 2008.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. S 1983

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

20. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

21. All of the aforementioned acts deprived plaintiff of the rights,

privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

24. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

25. The acts complained of deprived plaintiff of his rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have excessive force imposed upon him;
- E. Not to have summary punishment imposed upon him; and
- F. To receive equal protection under the law.

PENDANT STATE CLAIMS

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

27. Within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

28. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

29. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said Hearings were conducted.

30. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

31. Plaintiff has complied with all conditions precedent to maintaining the instant action.

32. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT**

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

34. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

35. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY**

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

37. Defendant police officers touched plaintiff in a harmful and offensive manner.

38. Defendant police officers did so without privilege or consent from plaintiff.

39. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST**

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

41. Defendant police officers arrested plaintiff in the absence of probable cause and without a warrant.

42. As a result of the aforesaid conduct by defendants, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings.

43. The aforesaid actions by the defendants constituted a deprivation of the plaintiffs rights.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE IMPRISONMENT**

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

45. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, was put in fear for his safety, was

humiliated and subjected to handcuffing, and other physical restraints.

46. Plaintiff was conscious of said confinement and did not consent to same.

47. The confinement of plaintiff was without probable cause and was not otherwise privileged.

48. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION**

49. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

50. On October 1st, 2005, defendants commenced a criminal proceeding against plaintiff.

51. Defendants lacked probable cause to commence said criminal proceeding against plaintiff.

52. Defendants were motivated by actual malice in commencing said criminal proceeding against plaintiff.

53. From October 1st, 2005 through December 17th, 2007 plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants.

54. On December 17th, 2007, the criminal prosecution against plaintiff was terminated in his favor when all charges were dismissed.

55. As a result of the aforementioned conduct, plaintiff suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

57. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

58. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

59. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

60. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

61. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

62. Plaintiff repeats, reiterates and realleges each and every allegation contained in the previous paragraphs with the same force and effect as if fully set forth herein.

63. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of said its Police Department, including the defendants individually named above.

64. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

65. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

66. By reason of the aforesaid conduct by defendants, plaintiff requests the following relief:

- A. Compensatory damages in the amount of one million dollars (\$ 1,000,000);
- B. Punitive damages in the amount of two million dollars (\$2,000,000);
- C. An award of reasonable attorney's fees pursuant to 42 U.S.C. § 1988, as well as costs and disbursements; and
- D. Any further relief as the Court may find just and proper.

WHEREFORE, plaintiff demands judgment in the sum of one million dollars (\$1,000,000) in compensatory damages, two million dollars (\$2,000,000) in punitive damages, plus reasonable attorney's fees, costs, and disbursements of this action.

Dated: 1/15/2009
Brooklyn, NY

A handwritten signature in dark ink, appearing to read "Paul Hale", is written over a horizontal line.

Attorney for Plaintiff(s)
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